



INDIAN POLITY

SUBORDINATE COURTS

MODULE – 78



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SUBORDINATE COURTS

The state judiciary consists of a high court and a hierarchy of subordinate courts, also known as lower courts. The subordinate courts are so called because of their subordination to the state high court.

CONSTITUTIONAL PROVISIONS – ARTICLE 233 TO 237

1. HOW DO DISTRICT JUDGES GET APPOINTED?

- 1 Appointed by the Governor of the State in consultation with State High Court



- 2 He should have the following qualifications:
 - He should not already be in the service of the Central or the state government.
 - He should have been an advocate or a pleader for seven years.
 - He should be recommended by the high court for appointment.

SUBORDINATE COURTS

CONSTITUTIONAL PROVISIONS – ARTICLE 233 TO 237

2. APPOINTMENT OF OTHER JUDGES

Appointment of persons (other than district judges) to the judicial service of a state are made by the governor of the state after consultation with the State Public Service Commission and the high court.

3. CONTROL OVER SUBORDINATE COURTS

The control over district courts and other subordinate courts including the posting, promotion and leave of persons belonging to the judicial service of a state and holding any post inferior to the post of district judge is vested in the high court.

SUBORDINATE COURTS

CONSTITUTIONAL PROVISIONS – ARTICLE 233 TO 237

4. INTERPRETATION

1 DISTRICT JUDGE: It includes judge of a city civil court, additional district judge, joint district judge, assistant district judge, chief judge of a small cause court, chief presidency magistrate, additional chief presidency magistrate, sessions judge, additional sessions judge and assistant sessions judge

2 JUDICIAL SERVICE: It means a service consisting exclusively of persons intended to fill the post of district judge and other civil judicial posts inferior to the post of district judge.

5. APPLICATION OF THE ABOVE PROVISIONS TO CERTAIN MAGISTRATES

The Governor may direct that the above mentioned provisions relating to persons in the state judicial service would apply to any class or classes of magistrates in the state.



SUBORDINATE COURTS

STRUCTURE AND JURISDICTION

HIGH COURT

District and Sessions Judge's Court

- Highest judicial authority
- Possesses original and appellate jurisdiction in both civil as well as criminal matters

CIVIL SIDE

CRIMINAL SIDE

Subordinate Judge's Court

Exercises unlimited pecuniary jurisdiction over civil suits

Munsiff's Court

Possesses limited jurisdiction and decides civil cases of small pecuniary stake

Chief Judicial Magistrate's Court

Decides criminal cases which are punishable with imprisonment for a term up to seven years

Judicial Magistrate's Court

Tries criminal cases which are punishable with imprisonment for a term up to three years

CURRENT AFFAIRS

HIGH LEVEL OF VACANCY IN SUBORDINATE COURTS

IN NEWS BECAUSE...

Supreme Court expresses concern over the high level of vacancy in subordinate courts.

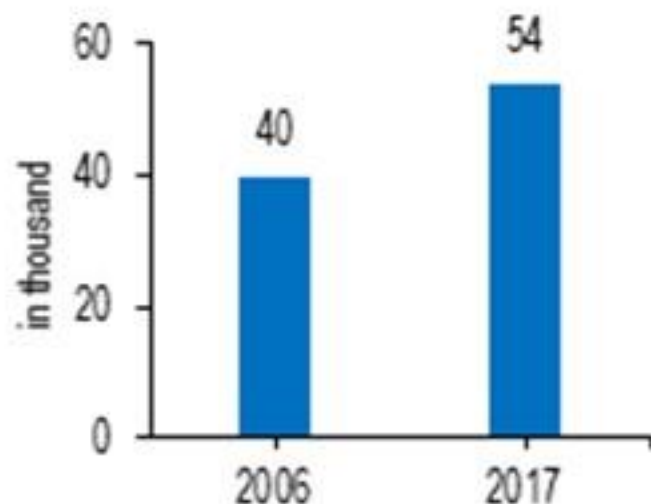


ISSUES FACED BY SUBORDINATE COURTS

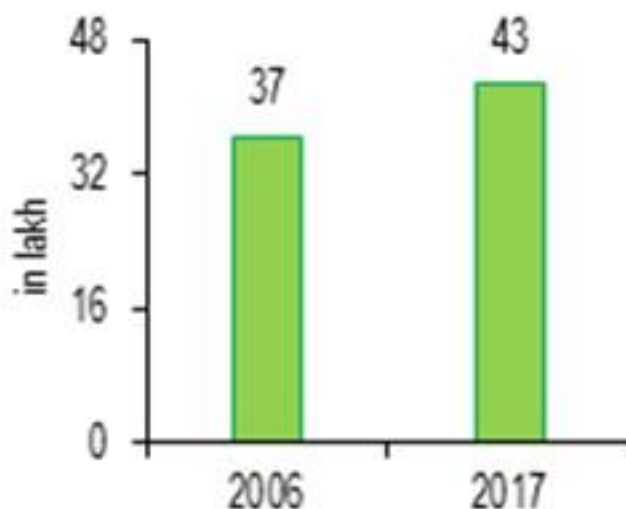
1. **High level of vacancy for the posts of judges:** There are 5,133 judges posts vacant in the subordinate judiciary against a sanctioned strength of 22,036 across the country.
2. **Issues in recruitment:** There is tardiness in the process of calling for applications, holding recruitment examinations and declaring the results.
3. **Pendency of cases:** Due to laxity in recruitment process there has been an increasing pendency in lower courts.

Pendency in courts has increased over the years; Of these, the subordinate courts account for over 86% pendency of cases, followed by 13.8% pendency before the High Courts and remaining 0.2% of cases are pending with the Supreme Court.

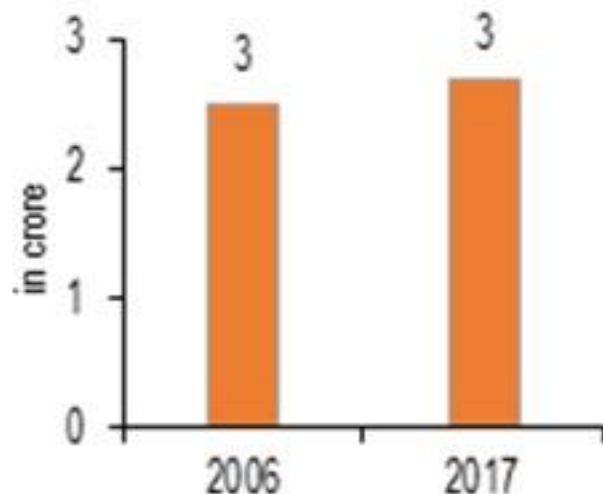
Pendency in Supreme Court



Pendency in High Courts



Pendency in Subordinate Courts



Note: Data for 2017 includes data up to April 2018

Source: PRS LEGISLATIVE RESEARCH

ISSUES FACED BY SUBORDINATE COURTS



4. **Frequency of hearings:** Lack of uniformity in frequency of hearings among the subordinate courts in the country. Higher frequency shows that more cases are being heard in shorter time span. This may affect the overall quality of justice delivered.
5. **Delays in evidence collection** and examination of witnesses which impacts the overall process of the court.
6. **Lack of Infrastructure:** Any failure to allocate the required human and financial resources may lead to the crippling of judicial work in the subordinate courts. It has 2 components-
 - Firstly, there is a lack of legal and para-legal staff and a dearth of well-trained investigating staff.
 - Secondly, lack of funds to support various processes like recruitment and support the needs of the recruited staff, is another issue.

WAY FORWARD



1 A smooth and time-bound process of making appointments would, require close coordination between the High Courts and the State Public Service Commissions.

2 *Creating All-India Judicial Service (AIJS):* It will create a cadre of judges who can be appointed at the district courts level across the country and ensure a transparent and efficient method of recruitment to attract the best talent in India's legal profession.

WAY FORWARD



- 3 The situation demands a massive infusion of both manpower and resources.

- 4 Utilizing Information Communication Technology to improve the judicial and administrative process in courts.
- 5 Scaling up E-courts projects to provide efficient & time-bound citizen centric services delivery has a potential to go a long way.
- 6 Proportionate recruitment of legal and paralegal staff too has to be addressed along with the need for well-trained staff responsible for preliminary investigation such as evidence collection and examination of witnesses.

WHAT DO YOU UNDERSTAND BY E-COURTS?



- 1 It aims at **computerization of district and subordinate courts** across the country.
- 2 e-Courts now has 16,755 ICT- enabled District Courts and Subordinate Courts.
- 3 **National Judicial Data Grid** is the output of the project and it hosts a dynamic repository of over 10 Cr cases and provides case information online to all the stakeholders.
- 4 Delivery of citizen centric court case information services is now a reality through web, email, SMS, mobile application etc.

LIVE ELECTRONIC EXCHANGE OF DATA BETWEEN COURTS AND POLICE

CURRENT AFFAIRS

A pilot project was inaugurated on 15th December, 2018 by honorable Justice Madan B Lokur, Chairman of Interoperable Criminal Justice System (ICJS) in the State of Telangana at Warangal.



MADAN B LOKUR



- 1 It is ambitious project aimed at integrating Crime and Criminals Tracking Network and Systems project with the e-courts and e-prisons databases, as well as other pillars of the criminal justice system, such as Forensics, Prosecution and Juvenile homes in a phased manner.
- 2 The e-courts project aimed at computerization of district and subordinate courts across the country and it reached the final stages of implementation.

LIVE ELECTRONIC EXCHANGE OF DATA BETWEEN COURTS AND POLICE

INTEROPERABLE CRIMINAL JUSTICE SYSTEM

1

CCTNS

- It is to make police functioning citizen friendly.
- It automates functioning of police stations.
- It facilitates investigation of crime and detection of criminals easy.

2

eCOURTS

- It is computerization of district and subordinate courts across the country.
- National Judicial Data Grid is an output of the project.
- It hosts a dynamic repository of over 10 Cr cases.

3

ePRISONS

- This is the database of the prisons. It is Digital India Initiative by Government of India.
- It records Prisoner's Basic Details, Family Details, Biometrics (fingerprints), Photograph, Medical Details, Prisoner Case History, Prisoner Movements, Punishment details etc.
- The availability of these details on an electronic platform will be useful to track the status of prisoners and smooth functioning of the prison system.

NALSA

National Legal Services Authority

राष्ट्रीय विधिक सेवा प्राधिकरण



CONSTITUTIONAL PROVISIONS

- **ARTICLE 39A** : Provides for free legal aid to the poor and weaker sections of the society and ensures justice for all.
- **ARTICLES 14 & 22(1)** : Ensure equality before law and a legal system which promotes justice on the basis of equal opportunity to all.

EVOLUTION OF NALSA

- Legal Services Authorities Act came into force on 9th November, 1995.
- This is to establish a nationwide uniform network for providing free and competent legal services to the weaker sections of the society on the basis of equal opportunity.
- NALSA has been constituted under this Act.

NATIONAL LEGAL SERVICES AUTHORITY

STRUCTURE AND JURISDICTION OF NALSA



NALSA lays down policies, principles, guidelines and frames effective and economical schemes for the State Legal Services Authorities to implement the Legal Services Programmes throughout the country

- 1 To provide free and competent legal services to the eligible persons.



FUNCTIONS OF NALSA

- 2 To organize Lok Adalats for amicable settlement of disputes.



- 3 To organize legal awareness camps in the rural areas.

RIGHT TO FREE
LEGAL AID







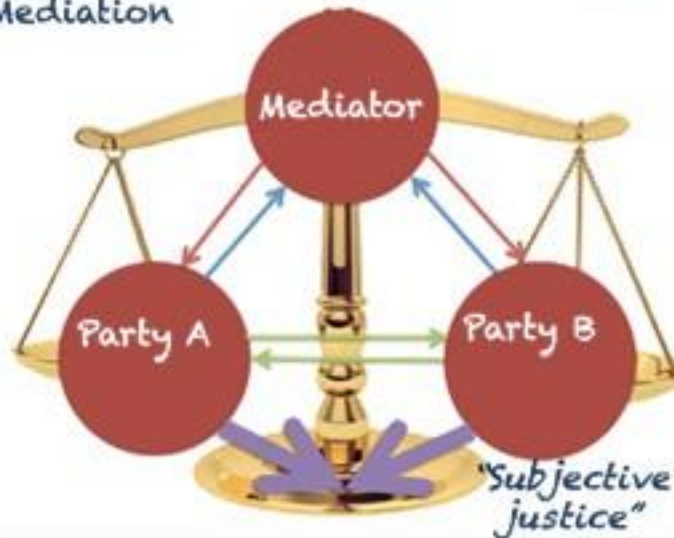


ALTERNATIVE DISPUTE RESOLUTION MECHANISMS

TOOLS OF ALTERNATIVE DISPUTE REDRESSAL



Mediation



MEDIATION

- ◆ It aims to facilitate the development of a consensual solution by the disputing parties.
- ◆ It is overseen by a non-partisan third party - the Mediator.
- ◆ The authority of the mediator vests on the consent of the parties that he should facilitate their negotiations.

TOOLS OF ALTERNATIVE DISPUTE REDRESSAL



ARBITRATION

- ◆ It is a process in which a neutral third party or parties render a decision based on the merits of the case.
- ◆ It can start only if there exists a valid arbitration agreement between the parties prior to the emergence of the dispute.



ALTERNATIVE DISPUTE RESOLUTION MECHANISMS

TOOLS OF ALTERNATIVE DISPUTE REDRESSAL

CONCILIATION

- ◆ It is a process by which resolution of disputes is achieved by compromise or voluntary agreement.
- ◆ Here, the conciliator does not render a binding award.
- ◆ The parties are free to accept or reject the recommendations of the conciliator.

NEGOTIATION

- ◆ A non-binding procedure in which discussions between the parties are initiated without the intervention of any third party with the object of arriving at a negotiated settlement to the dispute.
- ◆ It is the most common method of alternative dispute resolution.

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